



DECISION

POS/146/2025/KC

Complaint No. :

Name and address
of the complainant :

Mst. Seema Alam,
R/o House No. 4-B, 6/13, Nazimabad No. 04, Karachi.

Name of the Agency
complained against :

Sindh Building Control Authority

Name & Designation of
Investigating Officer :

Mr. Iqbal Nafees Khan
Regional Director, Karachi Central.

Subject :-

**NON-REFUND OF THE PAID AMOUNT AFTER
CANCELLATION OF THE BOOKED BUNGLOW**

COMPLAINT

Mst. Seema Alam lodged a complaint on 23.09.2025, stating that she had booked a Bungalow No. R-16, in "Standard Homes" Sultanabad, Sector 04, Karachi, a project of M/s Standard Builders & Developers. Out of total sale consideration of Rs.17,00000/=, she paid an amount of 12,84,000/=. She further stated that the remaining amount was to be paid at the time of execution of Lease, followed by handing over possession of the unit. However, prior to the execution of Lease and payment of remaining dues, the Builder cancelled the booking. In the meantime, the file relating to the said unit was also misplaced by her. The complainant thereafter requested refund of the paid amount but to no avail. She, therefore sought the intervention of this Institution for the resolution of her problem.

PROCEEDINGS

2. The complaint was examined and admitted under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (as amended in 2020) after condonation of delay and was referred to the Agency submission of its report.
3. In response, the Deputy Director (PSA&C), Sindh Building Control Authority (SBCA) had issued several letters to the Builder, namely M/s Standard Builders & Developers directing resolution of Complainant's grievance in accordance with the Karachi Building & Town Planning Regulations (KB&TPR) 2002 (as amended). The SBCA also issued a Show Cause Notice to the Builder for failure to redress the grievance of the complainant.
4. Earlier, the Advocate of the Builder, vide letter dated 16.08.2025, advised the complainant to lodge an FIR and publish a notice in a daily newspaper regarding misplacement of the original file, as per precondition for processing refund of the paid amount so that her paid amount could be refunded to her.

5. The Deputy Director, Public Sale Advertisement & Complaint, SBCA vide letter dated 09.02.2026 informed that the Builder viz M/s Standard Builders & Developers, has filed a Civil Suit No.11781/2025 before the Court of 3rd Senior Civil Judge Karachi East against the complainant and SBCA, and furnished a copy of the Plaint.
6. In view of the filing of Civil Suit, further proceeding before this office stands abated.

DECISION

7. The complaint is disposed of on the ground that matter is subjudice before a competent court of law.

Given under my hand and seal of this office.



Sd/-
(MUHAMMAD SOHAIL RAJPUT)
Sitara-e-Imtiaz (PAS
OMBUDSMAN SINDH
Karachi, the 31st March, 2026,